

§ 460. Entry and docketing of a money judgment. 1. Where the family court enters an order:

(a) requiring any party to provide for the support of another party, or child, or both; or

(b) providing for the support or maintenance of a spouse or former spouse, or child, or both, on a referral from the supreme court in an action for divorce, separation, annulment or a proceeding for the determination of the custody of a minor by writ of habeas corpus or by petition and order to show cause; or

(c) enforcing or modifying an order or decree of a court of competent jurisdiction not of the state of New York providing for the support of the petitioner and/or child support; or

(d) awarding support under article five-B of this act; or

(e) awarding counsel fees under this act;

and the party defaults in paying any sum of money due as required by the order directing the payment thereof, the court, without regard to the amount due, shall make an order directing the entry of judgment for the amount of child support arrears, together with costs and disbursements. The court shall make an order directing the entry of judgment for the amount of arrears of any other payments so directed, together with costs and disbursements, unless the defaulting party shows good cause for failure to make application for relief from the judgment or order directing such payment prior to the accrual of such arrears. The court shall not make an order reducing or cancelling such arrears unless the facts and circumstances constituting good cause are set forth in a written memorandum of decision. The application for such order shall be made upon such notice to the party or other person as the court may direct. Such judgment shall provide for the payment of interest on the amount of any arrears if the default was willful, in that the defaulting party knowingly, consciously and voluntarily disregarded the obligation under a lawful court order. Such interest shall be computed from the date on which the payment was due, at the prevailing rate of interest on judgments as provided in the civil practice law and rules.

2. A certified copy of the order directing the entry of a money judgment shall be entered in the office of the clerk of the county in which the proceeding was commenced. Said clerk shall docket the same in

the book kept by him for the docketing of judgments as if said order were a transcript of a judgment directed for the amount designated in the order. An order docketed under this subdivision shall have the same effect as a docketed judgment entered in the supreme court within the county where it is docketed and may be enforced by execution or in any other manner provided by law for the collection of a money judgment.

3. The relief provided for herein shall be in addition to any and every other remedy which may be provided under the law including, but not limited to, the remedies provided under the provisions of section four hundred fifty-four of this act and sections fifty-two hundred forty-one and fifty-two hundred forty-two of the civil practice law and rules; provided that when a judgment for such arrears has been entered pursuant to this section, such judgment shall not thereafter be subject to modification or be affected by the provisions of section four hundred sixty-two of this act. After the entry of any order hereunder, the judgment creditor shall not thereafter be entitled to collect, by any form of remedy, any greater portion of such arrears than that represented by the order so entered.